

HOUSE No. 5217

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, March 12, 2026.

The committee on Environment and Natural Resources, to whom were referred the petition (accompanied by bill, House, No. 965) of James K. Hawkins and others relative to the use of rodenticides; the joint petition (accompanied by bill, House, No. 975) of Kristin E. Kassner and Bruce E. Tarr (by vote of the town) that the town of Newbury be authorized to prohibit use of second generation anticoagulant rodenticides in said town; the petition (accompanied by bill, House, No. 4091) of Manny Cruz (with the approval of the mayor and city council) that the city of Salem be authorized to prohibit the use of second generation anti-coagulant rodenticides in said city; the petition (accompanied by bill, House, No. 4133) of Michelle L. Ciccolo (by vote of the town) that the town of Lexington be authorized to regulate the application of second generation anticoagulant rodenticides in said town; the joint petition (accompanied by bill, House, No. 4172) of Hadley Luddy and Julian Cyr (by vote of the town) that the town of Provincetown be authorized to prohibit use or sale of second generation anti-coagulant rodenticides; the petition (accompanied by bill, House, No. 4266) of Vanna Howard and others (with the approval of the city council) that the city of Lowell be authorized to further regulate the application of second-generation anticoagulant rodenticides in said city; the joint petition (accompanied by bill, House, No. 4310) of David M. Rogers and William N. Brownsberger (by vote of the town) that the town of Belmont be authorized to further regulate the application of second-generation anticoagulant rodenticides in said town; the petition (accompanied by bill, House, No. 4500) of Simon Cataldo (by vote of the town) that the town of Concord be authorized to ban second generation anticoagulant rodenticides within said town; the joint petition (accompanied by bill, House, No. 4571) of Sean Garballey and Cindy F. Friedman (by vote of the town) that the town of Arlington be authorized to prohibit use of second generation anti-coagulant rodenticides by commercial pesticide applicators in said town; the petition (accompanied by bill, House, No. 4917) of Kenneth I. Gordon (by vote of the town)

relative to banning the use of second-generation anticoagulant rodenticides in the town of Bedford; and the petition (accompanied by bill, House, No. 4972) of Simon Cataldo and Rodney M. Elliott (by vote of the town) that the town of Chelmsford be authorized to ban second generation anticoagulant rodenticides within said town, reports recommending that the accompanying bill (House, No. 5217) ought to pass.

For the committee,

CHRISTINE P. BARBER.

HOUSE No. 5217

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act restricting the use of rodenticides in the environment.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 2 of chapter 132B of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting after the definition of “Animal” the following:-

3 “Anticoagulant rodenticide”, any pesticide product that has a mode of action that
4 interferes with blood clotting including, but not limited to, the following active ingredients:
5 Brodifacoum, Bromadiolone, Chlorophacinone, Difenacoum, Difethialone, Diphacinonon, or
6 Warfarin.

7 SECTION 2. Section 5 of said chapter 132B of the General Laws, as so appearing, is
8 hereby amended by adding at the end thereof the following paragraph:-

9 The department, with the approval of the board, shall by regulation establish a process
10 and standards for the limited use of anticoagulant rodenticides by licensed applicators in public
11 health emergencies, provided that such process and standards provide for one-time indoor use in
12 a single location to address an urgent public health emergency, as determined by the state
13 department of public health and such use shall: (i) be limited to 14 days; (ii) be accompanied by

integrated pest management actions that include non-chemical methods and exclusionary measures to control rodents; (iii) require additional labeling of anticoagulant rodenticides used, including but not limited to, the name of the rodenticide clearly labeled on any bait box; (iv) require written rationale for the need for anticoagulant rodenticides over other non-toxic short-term alternatives; and (v) require applicators to report to the department after the 14-day emergency use period and include a plan for ongoing rodent control at the location.

Regulations shall also include provisions for the emergency use of anticoagulant rodenticides to protect drinking water supply, to control vectors for mosquito-borne illness, and for emergent infectious disease control.

SECTION 3. Section 7 of said chapter 132B of the General Laws, as so appearing, is hereby amended by adding at the end thereof the following paragraph:-

The subcommittee as established in section 3A of this chapter shall not register or reregister anticoagulant rodenticides, except that it may register or reregister anticoagulant rodenticides for emergency use, as provided by the department pursuant to section 5 of this chapter.

SECTION 4. The department shall report annually and include on its website information regarding the emergency use of anticoagulant rodenticides including, but not limited to, locations where the anticoagulant rodenticide was used, the types and amounts used, the contents of ongoing rodent control plans required in section 5 of chapter 132B, and relevant accompanying documents.

SECTION 5. This Act shall take effect January 1, 2028.